RICHARD WITNESS MANDIWANZIRA
versus
JOSEPH MAKWAKWA
and
REGISTRAR OF DEEDS
and
SHERIFF OF ZIMBABWE

HIGH COURT OF ZIMBABWE
TAKUVA J
HARARE; 14 March & 30 March 2025

J B Mutaudiro, for the applicant
Advocate T Sibanda, for the first respondent
No appearance for second and third respondent

Court Application for Mandamus

TAKUVA J: This is a court application for a mandamus with the applicant seeking the following order;

1. "The court application be and is hereby granted.
2. The 1st respondent shall make all conveyancing and statutory payments and shall do all such things as may be necessary to cause cancellation of Mortgage bond No. 220/15 encumbering Deed of Transfer No. 3030/13.
3. The 1st respondent shall do all such things as are necessary to cause transfer of a property known as stand No. 976 Marlborough Township 14 od Marlborough, Harare, measuring 4090 square metres, held under Deed of Transfer 3030/13 dated 4th of September 2013, into the applicant's name, within seventy-two (72) hours of the grant of this order.
4. In the event that the first respondent fails to comply with the order in paragraph 2 and 3 above, the Sheriff of this court and or his lawful deputy shall sign all the documents necessary to cause the said transfer of title into the applicant's name, and shall be empowered to do all things as are required by the law to ensure passing of the said transfer into applicant's favor.
5. Th first respondent shall pay applicant's costs of suit on a higher scale of attorney and client scale."

BACKGROUND FACTS

The applicant in this matter became interested in a property with the stand number 9766Marlborough Township 14 of Marlborough. This property was registered in the name of the first respondent who was also willing to sell his property as the applicant alleges. After doing his due diligence, applicant found out that the respondent had a mortgage bond registered on the property under mortgage bond No. 220/15. This finding was not alarming as the

applicant states that the first respondent convinced the him that the mortgage bond had been paid off. The proof to this was a copy of a letter of cancellation from the first respondent's bank. The bank had directed *Messrs. Chadyiwa and Associates* to attend to the cancellation of the mortgage bond. On 22 July 2024 the two parties then proceeded to enter into an agreement of sale of the stand held under Deed of Transfer 3030/13. Applicant avers that the two parties agreed that the purchase price of the property would be USD 180 000.00. Applicant proceeded to make the full payment through *Messrs. Maja and Associates*, the conveyancers appointed by the first respondent. The conveyancers handed over the full price to the first respondent with the consent of the applicant. First respondent signed an acknowledgment of receipt of the purchase price. What was left for the first respondent was to finalize the cancellation of the mortgage bond as well as paying for stamp fees required by the Deeds Registry Offices for services of this nature.

It is the finalization of the cancellation and the payment of the abovementioned fees that has delayed the transfer of the property to the applicant and give rise to this dispute. Applicant is of the view that the first respondent is in breach of their agreement and the court ought to come in and cause him to fulfil his obligation to the applicant. To these submissions, the first respondents oppose stating that the agreement that it entered with the applicant is that of a loan. First respondent denies entering into an agreement of sale of his property but rather a loan agreement wherein the applicant loaned him USD 27 000.00 at an interest if 25% per month. First respondent claims that the documents he signed relating to the sale only served as security to assure the Applicant that he will pay back the money loaned. First respondent submits that he never intended to sell his property and it was the parties' agreement that they sign all the documents in order ensure the money would be paid back. On the day of hearing the first respondent raised a point *in limine* stating that there are material disputes of fact and therefore this application should proceed by way of action procedure.

POINT IN LIMINE AND ANALYSIS

Counsel for the first respondent submitted that the applicant ought to have proceeded by way of action procedure as the matter can not be dealt with on papers as there are material disputes of fact. In the case of Supa *Plant Investment (Pvt) ltd* v *Edgar Chidavaenzi* HH 92/09 MAKARAU JP (as she then was) held that;

> "A material dispute of facts arise when material fact alleged by the applicant are disputed and traversed by the respondent in such a manner as to leave the court with no ready answer to the dispute between the parties in the absence of further evidence."
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> To emphasise, the court further stated;

> "In this regard, the mere allegation of a dispute of fact is not conclusive of its existence…. The respondent's defence must set out in clear and cogent detail. A bare denial of the applicant's material averments does not suffice. The opposing papers must show a *bona fide* dispute of fact incapable of resolution without *viva voce* evidence having been heard."

The court will rely largely on this case. There is need to analyse if really there are material disputes of fact in this matter to the extent that this court cannot reach a conclusion.

There is evidence before this court revealing the nature of relationship between the two parties in dispute. Before the court, there is an agreement of sale that is signed by both parties agreeing to the sell of the proper for USD180 000.00. There is also before the court the acknowledgement of receipt of this same amount signed by the first respondent. It should be noted that the respondent admits to signing the documents that relate to the sell of the property. This means that he attached his signature consensually and there is no issue of forgery. The court however has one party before it claiming that what is presented before it is not the reality of what took place. It is my view that as a lawyer himself, the first respondent was fully aware of what he was signing for and what it meant to sign an agreement of sale. There is overwhelming evidence before the court that the first respondent admits to showing that these two parties agreed to a sale of property. Realising the evidence presented by the applicant to be false, it was the duty of the first respondent to submit to the court a convincing case that raises doubt on the case that the applicant is presenting to the court. It is a basic principle at law that he who alleges must prove as it was held in the *Bonny view Estate (Private) Limited v Zimbabwe Platinum Mine (Private) Limited & Anor* CCZ 6/19.The claim by the first respondent that the two parties entered into a loan agreement does not hold water as there is nothing subsequent supporting this claim. There is clearly no need for the court to consider *viva voce* evidence as established in the *Matukutire* v *Madenga and Another* (741 of 2022) [2022] ZWHHC 74 for this matter.

The first respondent entered and signed an agreement of sale with the applicant, fully aware of what the document was and its consequences and he is a legal practitioner therefore he ought to fulfil his obligation to the applicant. The court cannot allow a party to opt in or out of a contract they signed as they please especially after the other party has fulfilled their obligation to them.

If this was a case whereby the first respondent is claiming forgery of his signature on these documents the court would have taken a different approach to this case. This a party that admits to have signed documents that cause transference of property into the applicant's name therefore that should not materialize. The first respondent in this matter is in my view trying to

escape the inevitable. No evidence of the separate loan agreement has been presented and this allegation will not sway this court in making its decision. First respondent merely denies to have entered into an agreement of sale without presenting anything to support that claim.

The court is required to put into consideration what will be in the best interest of justice when dealing with such case. As stated in the case of *Zupco Limited vs Parkhouse Serviced (Pvt) Ltd* SC-13-2017 the court is required to weigh conflicting fact in civil matter on the basis of a balance of probabilities. According to the evidence present the court must say "We think it is more probable than not" *see Miller vs Minister of Pensions* [1947] 2 AER ER 342. It is also within the court's discretion to weigh whether deciding such a matter without *viva voce* evidence will prejudice the respondent in such a way that justice will not have been served. What is before the court is a first responding admitting to signing the documents used by the applicants to motivate their matter. There is therefore no dispute of fact as the first respondent was aware of what he was signing. Nothing before this court has been presented to convince the court otherwise. Without compelling proof challenging the applicant's case, there is nothing limiting this court from reaching a definitive conclusion. The court agrees with the applicant that there are no material disputes of fact in this matter and this application is properly before the court.

DISPOSITION

The point *in limine* is dismissed with costs.

TAKUVA J……..

John Mugogo Attorneys, applicant's legal practitioner
Chadyiwa & Associates, first respondent's legal practitioners